

The examination is being carried out on the **following application documents**

Description, Pages

1-79 as published

Claims, Numbers

1-27 filed with entry into the regional phase before the EPO

Drawings, Sheets

1-20 as published

1).

The documents cited in the search report are to be regarded as being numbered D1-D5 in their order of citation. The Examining division intend to refer to the sections of these documents highlighted in the search report, unless otherwise specified.

2).

Claims 1 and 2 are unclear under Article 84 EPC.

Claim 1 defines the treatment before the determination of the DNA or BRCA status of the patient. Claim 2 states that the patient has been characterised by the absence of a mutation in BRCA. The patients of claim 2, having had their BRCA status characterised, therefore do not fall within the scope of claim 1.

3).

Document D2 discloses the treatment of breast cancer patients with a PARP inhibitor , including MK4827, with any mention of previous characterisation of the DNA and BRCA status.

Such a treatment falls within the scope of claims 1, 5, 7, 9, 10, 12. 16 and 25 under Article 54 EPC.

4).

Documents D1- D4 discloses the PARP inhibitor treatments of cancer patients "without BRCA mutations", no mention of BRCA mutations; "non BRCA" and "regardless of BCRA1/2 mutations".

Such treatments fall within the scope of claims 3, 5, 7 and 9 under Art 54 EPC.

5).

The treatments of claims 4 and 6 appear to rely on the known properties of known agents (D1-D4). As such these claims cannot be regarded as involving an inventive step under Article 56 EPC.

6)

Claim 10 is unclear under Article 84 EPC. This claims covers the (known) treatment of cancers with niraparib. Such treatments are said to be improved in various ways by the selection of a "regimen determined to achieve". Such a phrase merely represents a repetition of the problem to be solved, rather than propose an technical solutions.

7).

it is also apparent from D5 that one of the proposed solutions (300mg dose) has already been achieved Hence claims 10, 16, 18 and 19 are not regarded as being novel under e 54 EPC.

8).

The features of the remaining claims would appear to represent known techniques adopted by the skilled man in order to achieve the improved result mentioned in claim 10 (see D5) Hence no inventive step under Article 56 can be recognised for these claims.